IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 11
(CAA)-24(PB)/2018

IN THE MATTER OF:
Flipkart Digital Media Pvt. Ltd. & Instakart Services Pvt. Ltd.

.... Applicant/Petitioner

Order under Section 230-232

Order delivered on 20.05.2020

CORAM:
SH. B.S.V. PRAKASH KUMAR
HON'BLE ACTG. PRESIDENT

SH. NARENDER KUMAR BHOLA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant — Mr. Rajat Joneja, Adv.
For the ITD — Ms. Lakshmi Gurung, Sr. Standing Counsel

ORDER

It is an application filed for change of appointed date after scheme was approved by this Bench on 16.01.2020. Now asking for change of appointed date in the Scheme already approved based on a resolution purportedly passed by the Board is not permissible under law because appointed date is crucial for many reasons, moreover, if it is amalgamation, transferor company will not remain in existence after scheme is approved, we don't know how the change sought affects the rights of the shareholders. It is not their case, it is typographical mistake. If change is sought before approval, it is understandable. Moreover, no provision is set out in

the Companies Act 2013 to make changes after approval of the scheme.

In view thereof, this application is hereby **dismissed**.

-sd-

(B.S.V PRAKASH KUMAR)
ACTG. PRESIDENT

-sd-

(NARENDER KUMAR BHOLA)
MEMBER (TECHNICAL)

20.05.2020
Aarti Makker